

25CV06263 Kenan Done, et al. v. Classic Properties SB, Inc., et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-04

Motion: Petition of Umay Alizada Done for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

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Case Number

25CV06263

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/04/2026 - 10:00

Nature of Proceedings

Petition of Umay Alizada Done for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

Tentative Ruling

For all reasons stated herein, the court will continue the petition of Umay Alizada Done for approval of compromise for a minor to October 9, 2026, in this department at 10:00 a.m. On or before September 25, 2026, petitioner shall file a public version of the petition with redactions of exhibits consistent with this court's order entered on June 23, 2026. In addition, on or before September 25, 2026, petitioner shall file a declaration from a medical professional or other evidence establishing the anticipated costs, if any, of future monitoring or future medical treatment for minor Kurt Kaya Done pertaining to his alleged injuries in this action.

Background:

On October 3, 2025, plaintiff Kenan Done (Kenan) and Umay Done (Umay) in her individual capacity and as guardian for Kurt Kaya Done (Kurt), a minor (collectively, Plaintiffs), initiated this action by filing a complaint against defendants Classic Properties SB, Inc., and John Eliassen (collectively, Defendants). The complaint asserts six causes of action for (1) negligence, (2) private nuisance, (3) breach of contract, (4) breach of implied warranty of habitability, (5) breach of implied warranty of peaceful and quiet enjoyment, and (6) constructive trust.

As alleged in the complaint:

In May 2024, Plaintiffs leased a property from Defendants at 325 W. Anapamu Street, Apt. A, Santa Barbara (Property). (Compl., ¶ 1.) In February 2025, Plaintiffs discovered visible mold under all the beds. (Compl., ¶ 21.) A plumber inspected the Property and identified a leak in the wall as the source of moisture. (Compl., ¶ 23.) Roughly 80 percent of Plaintiffs' items had to be discarded, including all of Kurt's books, toys, play mats, linens, and many of Plaintiffs' clothes and furniture. (Compl., ¶ 29.) Plaintiffs were forced to vacate the Property for hotel accommodations and fly to their home country due to the stress of the situation. (Compl., ¶ 30.)

As alleged, Plaintiffs hired a mold inspection company which confirmed high levels of airborne toxic mold. (Compl., ¶ 28.) Plaintiffs underwent blood tests which showed elevated levels of mycotoxins. (Compl., ¶ 31.) Kurt "had the highest readings, particularly for Aspergillus Hemolysin. His pediatrician advised

long-term monitoring and discouraged detox due to his age." (Compl., ¶ 31.) Plaintiffs experienced allergies, irritation, and other physical responses, as well as asthmaticus, allergic rhinitis, and chronic sinusitis. (Compl., ¶ 43.) Plaintiffs suffered headaches, fatigue, nausea, shortness of breath, coughing, wheezing, nasal drainage, congestion, anxiety, and difficulty sleeping. (Compl., ¶ 44.)

"Due to the unabated water intrusion at the Anapamu [P]roperty, Plaintiffs' lives were completely disrupted. Plaintiffs have incurred expenses for medical bills, as well as hotel living expenses. While living in the home they constantly had to deal with allergy symptoms from the unabated water intrusion." (Compl., ¶ 32.)

"Defendants knew or should have foreseen the potential for injury to residents of the Anapamu [P]roperty, including the Plaintiffs. Defendants failed to act with reasonable care and in accordance with applicable codes, laws, ordinances, regulations, statutes, and constitutions." (Compl., ¶¶ 50-51.)

Plaintiffs pray for damages including "special and incidental damages ... relocation costs, temporary housing costs, future and past lost income, medical treatment, laboratory, and testing fees." (Compl., p. 25.)

On October 20, 2025, the court granted Umay's application for appointment of guardian ad litem of Kurt on the grounds that Umay is Kurt's parent.

On January 8, 2026, Defendants filed an answer to the complaint, generally denying the allegations therein and setting forth twenty-nine affirmative defenses.

On January 26, 2026, Plaintiffs filed a notice of conditional settlement.

On May 26, 2026, plaintiff Umay filed this petition for approval of minor compromise. The petition indicates that Umay is the guardian ad litem for Kurt, a minor, and seeks approval of the settlement of Kurt's claims in this action.

On June 23, 2026, the court entered a stipulation of the parties ordering that the following exhibits to the petition be sealed and removed from public access: "a. Exhibit 1 - Medical Documentation; [¶] b. Exhibit 2 - Settlement Agreement and General

Release; [¶] and c. Exhibit 3 - Attorney-Client Fee Agreement.” (Order on Joint Stip., June 23, 2026.) “The Petition ... the Court’s Order approving the compromise, and all other non-confidential pleadings and filings shall remain publicly accessible unless otherwise ordered by the Court.” (Ibid.) There were no further requests to seal documents or information.

Analysis:

“The requirements that a guardian ad litem be appointed and that the proposed compromise of a minor’s claim be approved by the trial court exist to protect the best interests of the minor.... ‘[J]ust as a minor lacks capacity to enter into a contract, the guardian ad litem lacks contractual capacity to settle litigation without endorsement of the court. As with any other contract where one party lacks capacity, or a necessary contractual formality has been ignored, the contract is voidable until the defect is remedied.” (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338 (Pearson).) “[W]hen the court accepts a settlement endorsed by the guardian [¶] it conduct[s] its own inquiry to determine whether the settlement serves the minor’s best interests.” (Scruton v. Korean Air Lines Co. (1995) 39 Cal.App.4th 1596, 1607, italics removed from original.)

“A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with rules 7.950 or 7.950.5, 7.951, and 7.952.” (Cal. Rules of Court, rule 3.1384(a).) “A petition for court approval of a compromise of ... a minor’s disputed claim ... must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition.” (Id., rule 7.950.) A minor’s attorney must make specific disclosures. (Id., rule 7.951.) “The person petitioning for approval of the compromise ... must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance.” (Id., rule 7.952(a).)

“Neither section 372 nor the California Rules of Court ... contemplates a noticed motion and adversary hearing when court approval of a minor’s compromise is sought. Although we need not decide the question, it would appear that a petition to approve or disapprove a minor’s compromise may be decided by the superior court, ex parte, in chambers.” (Pearson, supra, 202 Cal.App.4th at p. 1337, fn. 2.)

“The ... guardian ad litem so appearing for any minor ... shall have power, with the approval of the court ... to compromise the same Money or other property to be paid or delivered pursuant to the order or judgment for the benefit of a minor ... shall be paid and delivered as provided in Chapter 4 (commencing with Section 3600) of Part 8 of Division 4 of the Probate Code.” (Code Civ. Proc., § 372, subd. (a)(3).)

“When money or other property is to be paid or delivered for the benefit of a minor ... under a compromise ... the remaining balance of the money and other property (after payment of all expenses, costs, and fees as approved and allowed by the court under Section 3601) shall be paid, delivered, deposited, or invested as provided in this article.” (Prob. Code, § 3610.)

“In any case described in Section 3610, the court ... shall, upon application of counsel for the minor or person with a disability, order any one or more of the following: [¶] ... [¶] If the remaining balance of the money and other property to be paid or delivered does not exceed five thousand dollars (\$5,000) in value and is to be paid or delivered for the benefit of a minor, that all or any part of the money and the other property be paid or delivered to a parent of the minor, without bond, upon the terms and under the conditions specified in Article 1 (commencing with Section 3400) of Chapter 2.” (Prob. Code, § 3611, subd. (e).)

Here, the verified petition seeks approval of the settlement and release of Kurt’s claims in this action in exchange for payment of \$1,500 to Kurt, as part of a global settlement of all claims by Plaintiffs in exchange for \$40,000. (Pet., ¶¶ 10-11, 15.) The settlement provides that “Plaintiffs may apportion those settlement funds amongst themselves as they deem necessary.” (Pet., ¶ 10(c).) Umay and Kenan receive payments of \$19,250 each. (Pet., ¶ 11.) Plaintiffs’ counsel receives \$13,333.33 in attorney fees, which is paid out of the funds allocated to Keenan. (Pet., ¶ 17(f).) As the court understands the settlement, in total and including costs, Plaintiffs’ counsel receives \$13,333.33 in fees and costs, Umay receives \$19,250, Kenan receives \$5,916.67 (\$19,250 less attorney fees of \$13,333.33), and Kurt receives \$1,500 to be held in trust by Umay. (Pet., ¶¶ 10-11, 15, 17.) There are no other disclosed payments or costs. In exchange, Plaintiffs agree to release their claims against Defendants. (Pet., Attach. 10c [p. 14.] & Ex. 2.)

The petition verifies that Kurt “has recovered completely from the effects of the injuries ... and there are no permanent injuries.” (Pet., ¶ 8(a).) The petition’s claim of recovery by Kurt is supported by medical records filed under seal. (Pet., Attach. 8 [p. 11] & Ex. 1.)

The petition requests that the funds to Kurt “be paid or delivered to a parent of the minor, [Umay], without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402.” (Pet., ¶ 18(b)(5).) Such funds “may be paid or delivered to a parent entitled to the custody of the minor to be held in trust for the minor until the minor reaches majority” if the “parent ... gives ... written assurance, verified by the oath of such parent, that the total estate of the minor, including the money or other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value.” (Prob. Code, § 3401, subd. (c). The petition establishes that the amount paid to Kurt and the value of Kurt’s estate are both \$5,000 or less. (Pet., Attach. 18(b)(5) [p. 37].)

The petition establishes that Umay and Kenan, Kurt’s parents, sustained personal injuries due to the water intrusion and resulting mold growth in the unit. (Pet., Attach. 11(b)(3) [p. 30].) “Accordingly, their [proportion] of recovery is larger because it [includes] [compensation] for actual injuries sustained, in addition to property loss, loss of income and other out of pocket expenses they had due to this matter.” (Ibid.)

Based on the information presented in the petition, the court is inclined to approve the settlement provided that petitioner establishes that the money allocated to Kurt is sufficient to cover anticipated costs for any future monitoring or other anticipated future medical costs related to his alleged injuries in this action. For all these reasons, the court will continue the petition so that petitioner may submit the necessary information. (Cal. Rules of Court, rule 7.950.)

Judges

Judge Donna D. Geck

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